HM Courts & Tribunals Service

Name of court

Claim number

Name of claimant

Name of defendant

Date of hearing
Day Month Year

ONC 002R

Defence form

Use this form to respond to a property possession claim of a rented residential premise that has been made against you. If you have a solicitor, they must respond on your behalf.

You should respond before the hearing.

You might be able to respond online. Check the letter the court sent you telling you a claim had been made against you for details about how to respond online.

You are entitled to free legal advice before you submit your response

Need legal help?

Online support:
Go to **Find a legal adviser**, https://find-legal-advice.justice.gov.uk/
Enter your postcode and choose '**Housing**' and '**Housing Loss Prevention Advice Service**'.

Civil Legal Advice (CLA) can also put you in touch with a local expert.
Phone support:
Call 0345 345 4345
Open: Monday to Friday: 9am–8pm
Saturday: 9am–12:30pm

Text support:
Text '**legalaid**' and your name to 80010
(Standard text message rates apply) CLA will call you back.

Help that might be available at the hearing

If you do not have your own legal adviser, you might be able to speak to a duty adviser (a legal professional who helps people at court) on the day of your hearing. If they're available, they can give you advice and represent you at the hearing for free.

If you want to speak to the duty adviser, arrive at least 45 minutes before your hearing.

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Have you had any free legal advice?

- ☐ Yes
- ☐ No
- ☐ Prefer not to say

Legal advice: We're asking this question so we can check everyone is getting the free support they are entitled to. Your answer will not affect the outcome of the claim.

1. Your details

1.1 What is your name?

First name(s)

Last name

1.2 What is your date of birth? (optional)

Day Month Year

1.3 What is your postal address?

First line of address

Second line of address

Town or city

County (optional)

Postcode

2. Contact preferences

2.1 How do you want to receive updates about your case?

☐ By email. **My email address is**

☐ By post. Use my address as shown in **question 1.3**.

2.2 If we need to contact you with notifications or urgent updates about your case, what is your phone number?

My phone number is:

Note 2: Important documents like orders will always be sent by post.

You can choose to receive updates about your case by post or email. For example, when a hearing has been scheduled or a document is ready to view online.

3. Tenancy or licence details

3.1 Are the tenancy or licence details correct?

☐ Yes. **Go to question 3.3.**

☐ No. **Go to question 3.2.**

☐ I'm not sure. **Go to question 3.3.**

3.2 Give the correct tenancy or licence type or the tenancy, or licence start date?

Note 3.1: Refer to the claimant's answers to 'What type of tenancy, occupation contract or licence is in place, or was in place? and 'Tenancy, occupation contract or licence start date' before you answer this question.

4. Notice of intention to begin possession proceedings

4.1 Did the claimant give you notice of their intention to begin possession proceedings?

☐ Yes. **I received notice from the claimant on**

Day Month Year

☐ No

☐ I'm not sure

Note 4.1: Refer to the claimant's answers to 'Date notice was served' to see the date the claimant says they served you notice.

5. Rent arrears

5.1 Was rent arrears the only reason the claimant relied on to seek possession?

- ☐ Yes. **Go to question 5.2.**
- ☐ No. **Go to Section 6.**

Note 5.1: Refer to the claimant's answer to 'Total rent arrears as shown on the rent statement' before you answer this question.

5.2 Do you owe the amount in rent arrears that the claimant has said?

- ☐ Yes. **Go to Section 6.**
- ☐ No. **Go to question 5.3.**
- ☐ I'm not sure. **Go to Section 6.**

5.3 How much do you believe you owe in rent arrears?

6. Disputing other parts of the claim

6.1 Was rent arrears the only ground for possession included in the claimant's claim?

- ☐ Yes. **Go to Section 7.**
- ☐ No. **Go to 6.2.**

6.2 Do you want to dispute any other parts of the claim?

- ☐ Yes. **Explain below.**
- ☐ No

Explain which parts of the claim you do not agree with

Note 6: You should read the claim form to decide if there's anything you dispute. You can dispute parts of the claim if you think that the claimant has given incorrect information or if you disagree with something they've said. For example, you may think:

- they did not follow the correct legal process
- a document they uploaded is not valid

You should review:

- the claimant's grounds for possession (their reasons for making the claim)
- any documents they uploaded to support their claim
- any other information they included in their claim

7. Payments or agreements since the claim was made

7.1 Were rent arrears included in the claimant's grounds for possession?

☐ Yes. **Go to question 7.2.**

☐ No. **Go to Section 8.**

7.2 Have you paid any money to the claimant since the claim issue date?

☐ Yes. **Go to question 7.3.**

☐ No. **Go to question 7.4.**

Note 7.2: The **claim issue date** is the date at the top of the letter you received in the post telling you that a housing possession claim has been made against you.

7.3 How much have you paid and when did you pay it?

I have paid	Date of payment

Note 7.3: If you have paid some or all of the money you owe, you should bring proof of this to the hearing.

7.4 Have you come to any agreement with the claimant to repay the arrears since the claim issue date?

☐ Yes. **Go to question 7.5.**

☐ No. **Go to Section 8.**

7.5 How much you have agreed to pay and how often you will pay and when was the agreement made?

I have agreed to pay

Frequency

The agreement was made on

Day Month Year

8. Making an offer to pay your arrears

8.1 Were rent arrears included in the claimant's grounds for possession?

- ☐ Yes. **Go to question 8.2.**
- ☐ No. **Go to Section 9.**

8.2 Would you like to offer to pay off your arrears in instalments?

- ☐ Yes. **Go to question 8.3.**
- ☐ No. **Go to Section 9.**

8.3 How much could you afford to pay in addition to the current rent?

Amount

- ☐ Weekly
- ☐ Monthly

9. Your household and circumstances

9.1 Do you have any dependent children you look after financially?

- ☐ Yes. **Go to question 9.2.**
- ☐ No. **Go to question 9.3.**

9.2 How many dependent children do you have and what are their ages?

Number of children

Their ages

9.3 Do you have any other dependants you look after financially, like elderly relative?

- ☐ Yes. **Go to question 9.4.**
- ☐ No. **Go to question 9.5.**

9.4 How many other dependants you look after financially and how old are they and anything else you think the court should know about them?

Number of other dependants

Anything else you think the court should know about them

9.5 Do any other adults live in your home?

☐ Yes. **Go to question 9.6.**

☐ No. **Go to question 9.7.**

9.6 How many adults live in your home and what is their relationship to you, as well as anything else you think the court should know about them?

Number of adults

What is their relationship to you?

Anything else you think the court should know about them

9.7 If you had to leave your home would you have somewhere else to live?

☐ Yes. **I would be able to move in by**

Day Month Year

☐ No

☐ Not sure

10. Your circumstances

Use this section to explain anything that has affected your situation and that you think the judge should know.

For example:

- Someone in your home is ill or has a disability
- Your children go to a local school
- You work irregular hours, which makes it hard to find a new place to live

10.1 Would you like to share anything about your circumstances that you think a judge should know about?

☐ Yes. **Give details in the box below.**

☐ No. **Go to Section 10.**

11. Exceptional hardship

11.1 If you were asked to leave your home, would you experience exceptional hardship?

☐ Yes. **Give details in the box below.**

☐ No. **Go to Section 11.**

Explain the exceptional hardship you would experience.

Note 11: Exceptional hardship means experiencing serious difficulties that go beyond the normal difficulty of losing your home.

Any details you provide will be considered by a judge. If they decide that exceptional hardship applies in your case, they might consider whether you can stay in your home for longer.

For example, you might have:

- gone through a divorce or separation
- lost your job or been made redundant
- experienced a bereavement or long-term illness
- been declared bankrupt

12. Income

12.1 What regular income do you receive?

Select all that apply	Amount received	Frequency
☐ Income from all jobs you do	**£**	☐ weekly ☐ monthly
☐ Pension – state and private	**£**	☐ weekly ☐ monthly
☐ Universal Credit	**£**	☐ weekly ☐ monthly
☐ Other benefits and credits	**£**	☐ weekly ☐ monthly
☐ Money from somewhere else (for example, child maintenance payments or someone in your household gives you money)	**£**	☐ weekly ☐ monthly

12.2 If you do not receive Universal Credit, have you applied for it?

☐ Yes. **I applied for Universal Credit on**

Day Month Year

☐ No

13. Priority debts

Priority debts are debts which could lead to serious consequences if you do not pay them.

Excluding rent or mortgage arrears, priority debts are:

- council tax arrears
- gas or electricity arrears
- phone or internet arrears
- TV licence arrears
- court fines
- overpaid tax credits
- payments for goods bought on hire purchase or conditional sale
- unpaid income tax, National Insurance or VAT
- unpaid child maintenance

Note 13: Read guidance from Citizens Advice on what counts as a priority debt at: www.citizensadvice.org.uk/debt-and-money/help-with-debt/dealing-with-your-debts/work-out-which-debts-to-deal-with-first/

13.1 Do you have any priority debts?

☐ Yes. **Go to question 13.2.**

☐ No. **Go to question 13.4.**

13.2 What is the total amount you owe for all your priority debts?

13.3 How much do you pay towards your priority debts?

☐ weekly ☐ monthly

14. Expenses

14.1 What other regular expenses do you have?

Select all that apply		Amount spent	Frequency
☐	Household bills (for example, council tax, gas, electricity, water, internet)	£	☐ weekly ☐ monthly
☐	Loan payments	£	☐ weekly ☐ monthly
☐	Child or spousal maintenance	£	☐ weekly ☐ monthly
☐	Mobile phone	£	☐ weekly ☐ monthly
☐	Grocery shopping	£	☐ weekly ☐ monthly
☐	Fuel, parking and transport	£	☐ weekly ☐ monthly
☐	School costs (for example, uniform and school dinners)	£	☐ weekly ☐ monthly
☐	Clothing	£	☐ weekly ☐ monthly
☐	Other	£	☐ weekly ☐ monthly

15. Any other information

15.1 Is there anything else you want to tell the court as part of your response?

☐ Yes. **Give further details in the box below.**

☐ No

16. Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☐ **I believe** that the facts stated in this defence form are true.

☐ **The defendant** believes that the facts stated in this defence form are true. **I am authorised** by the defendant to sign this statement.

Signature

☐ Defendant

☐ Litigation friend (where defendant is a child or a patient)

☐ Defendant's legal representative (as defined by CPR 2.3(1))

Date

Day Month Year

Full name

Name of defendant's legal representative's firm

If signing on behalf of firm or company give position or office held

What to do next

Do you want to make a counter claim?

☐ Yes. **Complete the form 'ONC 003'.**

☐ No. **Return the form and any documents you would like to include as part of your defence to the court dealing wiht your case. The court address will be in the coering letter.**

Note: If you do not submit your counterclaim at the same time as your defence and wish to do so later on, then you may need to make an application for permission and pay an application fee.

Hearing

A hearing date will be scheduled. You will be notified when this has happened.

At the hearing, a judge will listen to both sides and make a decision. **You should come to the hearing.**

If you need support to attend the hearing, like step-free access to the court, details of how to request this will be included in the letter, email or text message you receive letting you know the hearing has been scheduled.

Counterclaim for possession

If you need to make a counterclaim against the defendant, you should complete form **ONC 003**, which follows this defence form.

A counterclaim is a separate claim that you can make against the claimant alongside your response.

You must have a valid reason to make a counterclaim and you will have to pay a fee to make one, unless you are eligible for help with fees.

If you are not sure whether you have a valid reason, you can get free legal advice. This is available through the Housing Loss Prevention Advice Service. You can contact them at https://find-legal-advice.justice.gov.uk/.

Guidance on counterclaims in a rent arrears case from Citizens Advice can be found at: https://www.citizensadvice.org.uk/housing/repairs-and-housing/repairs-and-housing-conditions/getting-your-landlord-to-do-repairs/renting-from-the-council-or-a-housing-association/offsetting-rent-arrears-because-repairs-havent-been-done/

Guidance on counterclaims from Shelter can be found at: https://england.shelter.org.uk/professional_resources/legal/possession_and_eviction/tenant_defences_to_possession/tenant_defence_and_counterclaim_process

Support to submit your defence

If you need help submitting your defence, such as getting this form in a different format, contact your local court. You can find their contact details in the documents you received about the possession claim.

You can also find your local court using the Find a Court or Tribunal service: https://www.find-court-tribunal.service.gov.uk/.

If you do not know which court to contact, select '**Money**' and then '**Housing**' to find the right court.